(b)(1)(A),MAG,JURY

US District Court Electronic Case Filing System
District of Utah (Central)
CIVIL DOCKET FOR CASE #: 2:23-cv-00242-AMA-DAO

Thorpe et al v. Cedar Hills City et al
Assigned to: District Judge Ann Marie McIff Allen
Referred to: Magistrate Judge Daphne A. Oberg
Cause: 42:1983 Civil Rights Act

Date Filed: 04/12/2023
Jury Demand: Plaintiff
Nature of Suit: 440 Civil Rights: Other
Jurisdiction: Federal Question

Plaintiff

Janene Thorpe
an individual

represented by **Corwin David Bennett**
HEIDEMAN & ASSOCIATES
2696 N UNIVERSITY AVE STE 180
PROVO, UT 84604
801-472-7742
Fax: 801-374-1724
Email: cbennett@heidlaw.com
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

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LEAD ATTORNEY
ATTORNEY TO BE NOTICED

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UTAH LAW PC
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HIGHLAND, UT 84003
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Email: Norm@Utah.law
TERMINATED: 07/09/2026
LEAD ATTORNEY
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Liisa A. Hancock
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TERMINATED: 09/08/2023
ATTORNEY TO BE NOTICED

Plaintiff

Jr Christopher Thorpe
an individual

represented by **Corwin David Bennett**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Justin D. Heideman
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Liisa A. Hancock
(See above for address)
TERMINATED: 09/08/2023
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Norman W. Peat , Jr
(See above for address)
TERMINATED: 07/09/2026
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Plaintiff

Sr Christopher Thorpe
an individual

represented by **Corwin David Bennett**
(See above for address)
LEAD ATTORNEY

ATTORNEY TO BE NOTICED

Justin D. Heideman
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ATTORNEY TO BE NOTICED

Norman W. Peat , Jr
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TERMINATED: 07/09/2026
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Liisa A. Hancock
(See above for address)
TERMINATED: 09/08/2023
ATTORNEY TO BE NOTICED

Plaintiff

Charlie Thorpe
an individual

represented by **Corwin David Bennett**
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LEAD ATTORNEY
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Justin D. Heideman
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LEAD ATTORNEY
ATTORNEY TO BE NOTICED

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TERMINATED: 07/09/2026
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Liisa A. Hancock
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TERMINATED: 09/08/2023
ATTORNEY TO BE NOTICED

V.

Defendant

Cedar Hills City
a government entity

represented by **Kimberly A. Smith**
BENNETT TUELLER JOHNSON & DEERE
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SALT LAKE CITY, UT 84121
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(801)438-2000
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ATTORNEY TO BE NOTICED

Defendant

American Fork City
a government entity

represented by **Michael L. Ford**
STRONG & HANNI
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SALT LAKE CITY, UT 84070
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LEAD ATTORNEY
ATTORNEY TO BE NOTICED

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175 S MAIN ST STE 500
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ATTORNEY TO BE NOTICED

Defendant

American Fork City Police Department
a government entity

represented by **Michael L. Ford**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Robert L. Janicki
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Gary R. Guelker
(See above for address)
ATTORNEY TO BE NOTICED

Jacob T. Gudenkauf
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Darren Falslev
in his official capacity and individual capacity as American Fork Police Chief

represented by **Michael L. Ford**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Robert L. Janicki
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Gary R. Guelker
(See above for address)
ATTORNEY TO BE NOTICED

Jacob T. Gudenkauf
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

American Fork City Police Chief
TERMINATED: 10/30/2023

represented by **Gary R. Guelker**
(See above for address)
ATTORNEY TO BE NOTICED

Jacob T. Gudenkauf
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

C Slate Blackburn
in his official and individual capacities

represented by **Michael L. Ford**
(See above for address)

LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Robert L. Janicki
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Gary R. Guelker
(See above for address)
ATTORNEY TO BE NOTICED

Jacob T. Gudenkauf
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Phillip W.S. Craig
in his official and individual capacities

represented by **Michael L. Ford**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Robert L. Janicki
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Gary R. Guelker
(See above for address)
ATTORNEY TO BE NOTICED

Jacob T. Gudenkauf
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Joseph A Nordin
in his official and individual capacities
TERMINATED: 07/27/2023

Defendant

Jennifer L Nakai
in her official and individual capacities

represented by **Michael L. Ford**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Robert L. Janicki
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Defendant

Kandace N Konecny
in her official and individual capacities

represented by **Michael L. Ford**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Robert L. Janicki
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Defendant

Seth Waite
in his official and individual capacities

represented by **Michael L. Ford**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Robert L. Janicki
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Defendant

FNU Adamson
Sergeant, in his official and individual capacities
TERMINATED: 07/27/2023

Cross Claimant

Cedar Hills City
a government entity

represented by **Kimberly A. Smith**
(See above for address)

LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Adam Darrell Goff
(See above for address)
ATTORNEY TO BE NOTICED

H. Craig Hall
(See above for address)
ATTORNEY TO BE NOTICED

Hyrum J. Bosserman
(See above for address)
ATTORNEY TO BE NOTICED

V.

Cross Defendant

American Fork City
a government entity

represented by **Michael L. Ford**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Robert L. Janicki
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Gary R. Guelker
(See above for address)
ATTORNEY TO BE NOTICED

Jacob T. Gudenkauf
(See above for address)
ATTORNEY TO BE NOTICED

Cross Defendant

American Fork City Police Department
a government entity
TERMINATED: 12/17/2024

represented by **Michael L. Ford**
(See above for address)
LEAD ATTORNEY

ATTORNEY TO BE NOTICED

Robert L. Janicki
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Gary R. Guelker
(See above for address)
ATTORNEY TO BE NOTICED

Jacob T. Gudenkauf
(See above for address)
ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
04/12/2023	1	Case has been indexed and assigned to Judge David Barlow. Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe is directed to E-File the Complaint and cover sheet (found under Complaints and Other Initiating Documents) and pay the filing fee of $ 402. by the end of the business day. NOTE: The court will not have jurisdiction until the opening document is electronically filed and the filing fee paid in the CM/ECF system. Civil Summons may be issued electronically. Prepare the summons using the courts PDF version and email it to utdecf_clerk@utd.uscourts.gov for issuance. (ks) (Entered: 04/12/2023)
04/12/2023	2	COMPLAINT against All Defendants (Filing fee $ 402, receipt number AUTDC-4646576) filed by Charlie Thorpe, Janene Thorpe, Christopher Thorpe(an individual). (Attachments: # 1 Exhibit Parcel Map) (Hancock, Liisa) (Entered: 04/12/2023)
04/12/2023	3	Civil Cover Sheet (JS44) Civil Summons may be issued electronically. Prepare the summons using the courts PDF version and email it to utdecf_clerk@utd.uscourts.gov for issuance, filed by Charlie Thorpe, Christopher Thorpe(an individual), Janene Thorpe. (Hancock, Liisa) (Entered: 04/12/2023)
04/13/2023	4	NOTICE OF MAGISTRATE JUDGE AVAILABILITY TO PRESIDE OVER CASE- Under 28 U.S.C. 636(c), Fed. R. Civ. P. 73, and DUCivR 72-4, you are hereby notified that a magistrate judge for the District of Utah may conduct any or all proceedings in this case, including a jury or bench trial and entry of a final judgment. Exercise of this jurisdiction by the magistrate judge is permitted only if all parties voluntarily sign and return the form. To consent, return the Consent Form to the clerk's office within 21 days via email at consents@utd.uscourts.gov or mail at the address on the form. **Please do not efile the Consent Form in the case.** Notice e-mailed or mailed to Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Notice generated by Court) Form due by 5/4/2023. (ks) (Entered: 04/13/2023)

04/13/2023	5	ORDER REFERRING CASE to Magistrate Judge Daphne A. Oberg under 28:636 (b)(1)(A), Magistrate judge to hear and determine all nondispositive pretrial matters. Signed by Judge David Barlow on 4/13/23. (skw) (Entered: 04/13/2023)
05/04/2023	6	RECEIVED Magistrate Availability Form from Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (alf) (Entered: 05/04/2023)
07/21/2023	7	Summons Issued Electronically as to American Fork City. Instructions to Counsel: 1. Click on the document number. 2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (ks) (Entered: 07/21/2023)
07/21/2023	8	Summons Issued Electronically as to American Fork City Police Department. Instructions to Counsel: 1. Click on the document number. 2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (ks) (Entered: 07/21/2023)
07/21/2023	9	Summons Issued Electronically as to Cedar Hills City. Instructions to Counsel: 1. Click on the document number. 2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (ks) (Entered: 07/21/2023)
07/21/2023	10	Summons Issued Electronically as to Darren Falslev. Instructions to Counsel: 1. Click on the document number. 2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (ks) (Entered: 07/21/2023)
07/21/2023	11	MOTION for Bond *and Request for hearing on determination of amount for* Civil Rights Bond filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. Motions referred to Daphne A. Oberg.(Hancock, Liisa) (Entered: 07/21/2023)
07/21/2023	12	NOTICE of Payment of Undertaking by Charlie Thorpe, Christopher Thorpe(an individual), Janene Thorpe (Hancock, Liisa) (Entered: 07/21/2023)
07/21/2023	13	Summons Issued Electronically as to C Slate Blackburn. Instructions to Counsel: 1. Click on the document number. 2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (ks) (Entered: 07/21/2023)

07/21/2023	14	Summons Issued Electronically as to Phillip W.S. Craig. Instructions to Counsel: 1. Click on the document number. 2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (ks) (Entered: 07/21/2023)
07/25/2023	15	Motion No Longer Referred: 11 MOTION for Bond and Request for hearing on determination of amount for Civil Rights Bond. District judge will handle. (skw) (Entered: 07/25/2023)
07/25/2023	16	MOTION REFERRED - 11 MOTION for Bond *and Request for hearing on determination of amount for* Civil Rights Bond. Motion was unreferred erroneously. Motion referred to Magistrate Judge Daphne A. Oberg. (skw) (Entered: 07/25/2023)
07/25/2023	17	AMENDED COMPLAINT against All Defendants with Jury Demand. Removed Defendants: Joseph A. Nordin; Jennifer L. Nakai; Kandace N. Konecny; Seth Waite; Sergeant Adamson. filed by Charlie Thorpe, Janene Thorpe, Christopher Thorpe(an individual). (Hancock, Liisa) (Entered: 07/25/2023)
07/25/2023	18	DOCKET TEXT ORDER: The time for service under Rule 4(m) of the Federal Rules of Civil Procedure has passed, but no proof of service has been filed. Within fourteen days, Plaintiffs must file either: 1) proof of timely and proper service upon the defendant(s), or 2) a document setting forth good cause for a failure to timely serve the defendant(s), and describing any steps taken to serve the defendant(s) and pursue this case. No attached document. Signed by Magistrate Judge Daphne A. Oberg on 7/25/2023. (rw) (Entered: 07/25/2023)
07/27/2023	19	ORDER denying 11 Motion and Request for Hearing for Determination of Bond. Plaintiffs may post an undertaking with the Clerk of the Court in the amount of $300, consistent with the District of Utah's Local Rules of Civil Practice, after which Plaintiffs are directed to file a notice with the court. Signed by Magistrate Judge Daphne A. Oberg on 7/27/2023. (mh) (Entered: 07/27/2023)
07/27/2023	20	STRICKEN ~~CERTIFICATE OF SERVICE by Charlie Thorpe, Christopher Thorpe(an individual), Janene Thorpe *of Summons to American Fork Police Department* (Hancock, Liisa)~~ Modified by striking entry on 7/27/2023 (mh). (Entered: 07/27/2023)
07/27/2023	21	STRICKEN ~~CERTIFICATE OF SERVICE by Charlie Thorpe, Christopher Thorpe(an individual), Janene Thorpe *to American Fork City* (Hancock, Liisa)~~ Modified by striking entry on 7/27/2023 (mh). (Entered: 07/27/2023)
07/27/2023	22	STRICKEN ~~CERTIFICATE OF SERVICE by Charlie Thorpe, Christopher Thorpe(an individual), Janene Thorpe *for Cedar Hills City* (Hancock, Liisa)~~ Modified by striking entry on 7/27/2023 (mh). (Entered: 07/27/2023)
07/27/2023	23	STRICKEN ~~CERTIFICATE OF SERVICE by Charlie Thorpe, Christopher Thorpe(an individual), Janene Thorpe *for Darren Falslev, American Fork Police Chief* (Hancock, Liisa)~~ Modified by striking entry on 7/27/2023 (mh). (Entered: 07/27/2023)
07/27/2023	24	STRICKEN ~~CERTIFICATE OF SERVICE by Charlie Thorpe, Christopher Thorpe(an individual), Janene Thorpe *for Phillip W.S. Craig* (Hancock, Liisa)~~ Modified by striking entry on 7/27/2023 (mh). (Entered: 07/27/2023)
07/27/2023	25	NOTICE OF DEFICIENCY re 20 Certificate of Service, 21 Certificate of Service, 22 Certificate of Service, 23 Certificate of Service, 24 Certificate of Service are stricken. Proof of Service of Summons to be filed under the event **civil- initial pleadings and service- service of process- summons returned executed**. The clerk requests the filer of the original documents to refile

		the pleadings under correct event. The new pleadings will receive new document numbers on the docket. (mh) (Entered: 07/27/2023)
07/27/2023	26	SUMMONS Returned Executed by Charlie Thorpe, Janene Thorpe, Christopher Thorpe(an individual) as to American Fork City Police Department served on 7/26/2023, answer due 8/16/2023. (Hancock, Liisa) (Entered: 07/27/2023)
07/27/2023	27	SUMMONS Returned Executed by Charlie Thorpe, Janene Thorpe, Christopher Thorpe(an individual) as to American Fork City served on 7/26/2023, answer due 8/16/2023. (Hancock, Liisa) (Entered: 07/27/2023)
07/27/2023	28	SUMMONS Returned Executed by Charlie Thorpe, Janene Thorpe, Christopher Thorpe(an individual) as to Cedar Hills City served on 7/26/2023, answer due 8/16/2023. (Hancock, Liisa) (Entered: 07/27/2023)
07/27/2023	29	SUMMONS Returned Executed by Charlie Thorpe, Janene Thorpe, Christopher Thorpe(an individual) as to Darren Falslev served on 7/26/2023, answer due 8/16/2023. (Hancock, Liisa) (Entered: 07/27/2023)
07/27/2023	30	SUMMONS Returned Executed by Charlie Thorpe, Janene Thorpe, Christopher Thorpe(an individual) as to Phillip W.S. Craig served on 7/26/2023, answer due 8/16/2023. (Hancock, Liisa) (Entered: 07/27/2023)
07/31/2023	31	ORDER TO PROPOSE SCHEDULE - See order for details. Signed by Magistrate Judge Daphne A. Oberg on 7/31/2023. (mh) (Entered: 07/31/2023)
08/03/2023	32	SUMMONS Returned Executed by Charlie Thorpe, Janene Thorpe, Christopher Thorpe(an individual) as to C Slate Blackburn served on 8/1/2023, answer due 8/22/2023. (Hancock, Liisa) (Entered: 08/03/2023)
08/15/2023	33	Stipulated MOTION for Extension of Time to File Response/Reply as to 2 Complaint filed by Defendant Cedar Hills City. (Attachments: # 1 Text of Proposed Order) Motions referred to Daphne A. Oberg. Attorney Hyrum J. Bosserman added to party Cedar Hills City(pty:dft)(Bosserman, Hyrum) (Entered: 08/15/2023)
08/16/2023	34	DOCKET TEXT ORDER granting 33 Motion for Extension of Time to File Response. Based on the parties' stipulation and good cause shown, the deadline for Defendant Cedar Hills City to answer or otherwise respond to the complaint is extended to August 30, 2023. Signed by Magistrate Judge Daphne A. Oberg on 8/16/2023. No attached document. (rw) (Entered: 08/16/2023)
08/23/2023	35	NOTICE OF FILING filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Hancock, Liisa) (Entered: 08/23/2023)
08/24/2023	36	MOTION to Withdraw as Counsel and Memorandum in Support filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Attachments: # 1 Text of Proposed Order) Motions referred to Daphne A. Oberg. (Hancock, Liisa) (Entered: 08/24/2023)
08/24/2023	37	NOTICE of Appearance by Michael L. Ford on behalf of American Fork City, American Fork City Police Department, C Slate Blackburn, Phillip W.S. Craig, Darren Falslev (Ford, Michael) (Entered: 08/24/2023)
08/24/2023	38	NOTICE of Appearance by Robert L. Janicki on behalf of American Fork City, American Fork City Police Department, C Slate Blackburn, Phillip W.S. Craig, Darren Falslev (Janicki, Robert) (Entered: 08/24/2023)

08/29/2023	39	Ex Parte (Not Sealed) MOTION for Extension of Time to File Response/Reply as to 2 Complaint filed by Defendant Cedar Hills City. (Attachments: # 1 Text of Proposed Order) Motions referred to Daphne A. Oberg.(Bosserman, Hyrum) (Entered: 08/29/2023)
08/30/2023	40	Ex Parte (Not Sealed) MOTION for Extension of Time to File Response/Reply as to 2 Complaint filed by Defendants American Fork City, American Fork City Police Department, C Slate Blackburn, Phillip W.S. Craig, Darren Falslev. (Attachments: # 1 Text of Proposed Order) Motions referred to Daphne A. Oberg.(Ford, Michael) (Entered: 08/30/2023)
08/30/2023	41	DOCKET TEXT ORDER granting 39 and 40 Motions for Extension of Time to File Response/Reply. For good cause shown, Defendant Cedar Hills City's 30 motion is granted. (*See* Fed. R. Civ. P. 6(b)(1)(A).) Where American Fork City, American Fork City Police Department, Darren Falselv, Phillip Craig, and C. Slate Blackburn's answer deadlines have already passed, their 40 motion is likewise granted, but due to excusable neglect. (*See* Fed. R. Civ. P. 6(b)(1)(B).) Accordingly, Defendants Cedar Hills City, American Fork City, American Fork City Police Department, Darren Falselv, Phillip Craig, and C. Slate Blackburn's deadlines to answer or otherwise respond to the complaint are extended to fourteen days after either: (1) any denial of the 36 motion to withdraw as counsel; (2) Plaintiffs file a notice of pro se appearance after any granting of the 36 motion to withdraw; or (3) new counsel for Plaintiffs files a notice of appearance after any granting of the 36 motion to withdraw, whichever is earliest. Signed by Magistrate Judge Daphne A. Oberg on 8/30/2023. No attached document. (rw) (Entered: 08/30/2023)
09/01/2023	42	MOTION to Substitute Attorney filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Attachments: # 1 Text of Proposed Order) Motions referred to Daphne A. Oberg. Attorney Justin D. Heideman added to party Charlie Thorpe(pty:pla), Attorney Justin D. Heideman added to party Christopher Thorpe(pty:pla), Attorney Justin D. Heideman added to party Christopher Thorpe(pty:pla), Attorney Justin D. Heideman added to party Janene Thorpe(pty:pla) (Heideman, Justin) (Entered: 09/01/2023)
09/05/2023	43	DOCKET TEXT ORDER denying without prejudice 42 Motion for Substitution of Counsel. Rule 83-1.4(a) of the District of Utah's Local Rules of Civil Practice governs the substitution of counsel. Mr. Heideman may refile a notice of substitution of counsel which must: (i) be signed by him as well as the withdrawing attorney; (ii) include both attorneys' bar numbers; (iii) identify the parties represented; (iv) be served on all parties; and (v) verify that the attorney entering the case is aware of and will comply with all pending deadlines in the matter, as required by Rule 83-1.4. (*See* DUCivR 83-1.4(a).) Signed by Magistrate Judge Daphne A. Oberg on 9/5/2023. No attached document. (rw) (Entered: 09/05/2023)
09/07/2023	44	NOTICE of Appearance by Jacob Gudenkauf on behalf of American Fork City, American Fork City Police Chief, American Fork City Police Department, C Slate Blackburn, Phillip W.S. Craig, Darren Falslev (Gudenkauf, Jacob) (Entered: 09/07/2023)
09/07/2023	45	NOTICE of Substitution of Counsel by Charlie Thorpe, Christopher Thorpe(an individual), Janene Thorpe (Heideman, Justin) (Entered: 09/07/2023)
09/11/2023	46	DOCKET TEXT ORDER denying as moot 36 Motion to Withdraw as Counsel. In light of the 45 Notice of Substitution of Counsel and pursuant to DUCivR 83-1.4(a), Ms. Hancock has been terminated from the case, and Mr. Heideman has been added as counsel of record. Accordingly, the 36 motion to withdraw is denied as moot. Signed by Magistrate Judge Daphne A. Oberg on 9/11/2023. No attached document. (rw) (Entered: 09/11/2023)

09/12/2023	47	NOTICE of Appearance by Gary R. Guelker on behalf of American Fork City, American Fork City Police Chief, American Fork City Police Department, C Slate Blackburn, Phillip W.S. Craig, Darren Falslev (Guelker, Gary) (Entered: 09/12/2023)
09/18/2023	48	Stipulated MOTION for Extension of Time to File Answer re 2 Complaint filed by Defendant Cedar Hills City. (Attachments: # 1 Text of Proposed Order) Motions referred to Daphne A. Oberg.(Bosserman, Hyrum) (Entered: 09/18/2023)
09/19/2023	49	DOCKET TEXT ORDER granting 48 Motion for Extension of Time to Answer. In the 48 motion, Plaintiffs indicate their intent to file an amended complaint. Based on this intent, Plaintiffs and defendant Cedar Hills City have stipulated to extend the deadline for Cedar Hills City to answer or otherwise respond to the complaint to twenty-one days after the amended complaint is filed. Based on the parties' stipulation and good cause shown, the 48 motion is granted and Cedar Hills City's answer deadline is so extended. Additionally, Plaintiffs must file their amended complaint within thirty days of this order. Signed by Magistrate Judge Daphne A. Oberg on 9/19/2023. No attached document. (rw) (Entered: 09/19/2023)
09/19/2023	50	NOTICE **To The Defendants Only** OF MAGISTRATE JUDGE AVAILABILITY TO PRESIDE OVER CASE- Under 28 U.S.C. 636(c), Fed. R. Civ. P. 73, and DUCivR 72-4, you are hereby notified that a magistrate judge for the District of Utah may conduct any or all proceedings in this case, including a jury or bench trial and entry of a final judgment. Exercise of this jurisdiction by the magistrate judge is permitted only if all parties voluntarily sign and return the form. To consent, return the Consent Form to the clerk's office within 21 days via email at consents@utd.uscourts.gov or mail at the address on the form. **Please do not efile the Consent Form in the case.** Notice e-mailed or mailed to Defendants American Fork City, American Fork City Police Chief, American Fork City Police Department, C Slate Blackburn, Cedar Hills City, Phillip W.S. Craig, Darren Falslev. (Notice generated by Clerk's Office) Form due by 10/10/2023. (mh) (Entered: 09/19/2023)
10/19/2023	51	MOTION for Extension of Time to Amend *Complaint* filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Attachments: # 1 Text of Proposed Order) Motions referred to Daphne A. Oberg.(Heideman, Justin) (Entered: 10/19/2023)
10/20/2023	52	DOCKET TEXT ORDER granting 51 Motion for Extension of Time to File Amended Complaint. For good cause shown, the 51 motion is granted. Plaintiffs must file their Amended Complaint by 10/26/2023. Signed by Magistrate Judge Daphne A. Oberg on 10/20/2023. No attached document. (gdr) (Entered: 10/20/2023)
10/20/2023	53	NOTICE of Appearance by Norman W. Peat, Jr on behalf of Charlie Thorpe, Christopher Thorpe(an individual), Janene Thorpe (Peat, Norman) (Entered: 10/20/2023)
10/26/2023	54	AMENDED COMPLAINT *Verified and Demand for Jury* against American Fork City, American Fork City Police Department, C Slate Blackburn, Cedar Hills City, Phillip W.S. Craig, Darren Falslev, Kandace N Konecny, Jennifer L Nakai, Seth Waite with Jury Demand. filed by Charlie Thorpe, Janene Thorpe, Christopher Thorpe(an individual). (Peat, Norman) (Entered: 10/26/2023)
10/27/2023	55	AMENDED COMPLAINT **Corrected** against All Defendants with Jury Demand. filed by Charlie Thorpe, Janene Thorpe, Christopher Thorpe(an individual). (Peat, Norman) (Entered: 10/27/2023)
11/16/2023	56	ANSWER to 55 Amended Complaint with Jury Demand , CROSSCLAIM against American Fork City, American Fork City Police Department filed by Cedar Hills City.(Bosserman, Hyrum) (Entered: 11/16/2023)

11/16/2023	57	NOTICE of Appearance by Adam Darrell Goff on behalf of Cedar Hills City (Goff, Adam) (Entered: 11/16/2023)
11/16/2023	58	NOTICE of Appearance by H. Craig Hall on behalf of Cedar Hills City (Hall, H.) (Entered: 11/16/2023)
11/17/2023	59	DOCKET TEXT ORDER: Plaintiffs are ordered to file a status report regarding the status of service on defendants Jennifer L Nakai, Kandace N Konecny, and Seth Waite within fourteen days. Signed by Magistrate Judge Daphne A. Oberg on 11/17/2023. No attached document.(gdr) (Entered: 11/17/2023)
11/17/2023	60	ANSWER to 55 Amended Complaint filed by American Fork City, American Fork City Police Department, C Slate Blackburn, Phillip W.S. Craig, Darren Falslev.(Ford, Michael) (Entered: 11/17/2023)
11/17/2023	61	ERRATA to 56 Answer to Amended Complaint, Crossclaim filed by Defendant Cedar Hills City *(correction to date/signature block)*. (Bosserman, Hyrum) (Entered: 11/17/2023)
11/28/2023	62	Requested Summons as to Kandace N Konecny. (Peat, Norman) (Entered: 11/28/2023)
11/28/2023	63	Requested Summons as to Jennifer L Nakai. (Peat, Norman) (Entered: 11/28/2023)
11/28/2023	64	Requested Summons as to Seth Waite. (Peat, Norman) (Entered: 11/28/2023)
11/29/2023	65	ANSWER to 56 Crossclaim filed by American Fork City, ~~American Fork City Police Department, C Slate Blackburn, Phillip W.S. Craig, Darren Falslev, Kandace N Konecny, Jennifer L Nakai, Seth Waite. Attorney Robert L. Janicki added to party Kandace N Konecny(pty:dft), Attorney Robert L. Janicki added to party Jennifer L Nakai(pty:dft), Attorney Robert L. Janicki added to party Seth Waite(pty:dft)(Janicki, Robert)~~ Modified to correct the docket to reflect that its Only American Forks City's answer on 1/8/2024 (kpf). (Entered: 11/29/2023)
12/01/2023	66	STATUS REPORT *on Service of Defendants, Jennifer L. Nakai, Kandace N. Konecny, and Seth Waite* by Charlie Thorpe, Christopher Thorpe(an individual), Janene Thorpe. (Peat, Norman) (Entered: 12/01/2023)
12/04/2023	67	Summons Issued Electronically as to Kandace N Konecny. Instructions to Counsel: 1. Click on the document number. 2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (sg) (Entered: 12/04/2023)
12/04/2023	68	Summons Issued Electronically as to Jennifer L Nakai. Instructions to Counsel: 1. Click on the document number. 2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (sg) (Entered: 12/04/2023)
12/04/2023	69	Summons Issued Electronically as to Seth Waite. Instructions to Counsel: 1. Click on the document number.

		2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (sg) (Entered: 12/04/2023)
12/22/2023	70	REPORT OF ATTORNEY PLANNING MEETING. (Heideman, Justin) (Entered: 12/22/2023)
12/23/2023	71	DOCKET TEXT ORDER: The parties failed to file a motion for a scheduling order as required by paragraph 3(a) of the 31 order to propose schedule. The parties are ordered to file a motion for scheduling order within fourteen days. Signed by Magistrate Judge Daphne A. Oberg on 12/23/2023. No attached document.(gdr) (Entered: 12/23/2023)
01/05/2024	72	Stipulated MOTION for Scheduling Order filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Attachments: # 1 Text of Proposed Order) Motions referred to Daphne A. Oberg.(Heideman, Justin) (Entered: 01/05/2024)
01/08/2024	73	SCHEDULING ORDER: granting 72 Motion for Scheduling Order. Amended Pleadings due by 8/15/2024. Joinder of Parties due by 8/1/2024. Expert Discovery due by 7/1/2025. Motions due by 8/1/2025. Scheduling Conference set for 8/8/2025 at 03:00 PM in Rm 8.100 before Judge David Barlow. Signed by Magistrate Judge Daphne A. Oberg on 01/08/2024. (kpf) (Entered: 01/08/2024)
01/08/2024	74	Discovery Management ORDER. See order for details. Signed by Magistrate Judge Daphne A. Oberg on 01/08/2024. (kpf) (Entered: 01/08/2024)
01/08/2024	75	DOCKET TEXT ORDER: Plaintiffs' 66 status report indicates Plaintiffs would serve and file proof of service for unserved Defendants, Jennifer L. Nakai, Kandace N. Konecny, and Seth Waite "immediately" after the summons were issued for these Defendants. The summons were issued on December 4, 2023, (*see* Doc. Nos. 67, 68, 69,) but no proof of service has been filed for these Defendants, nor have these Defendants filed an answer. Plaintiffs are ordered to provide a status report regarding the status of service of the unserved Defendants by January 22, 2024. Signed by Magistrate Judge Daphne A. Oberg on 1/8/2024. No attached document.(gdr) (Entered: 01/08/2024)
01/08/2024	76	Modification of Docket: Error: The docket suggests docket no 65 is an answer from many dfts however the document actually is just an answer from one defendant: American Fork City. Correction: The other defendant's selected have been stricken. re 65 Answer to Crossclaim. (kpf) (Entered: 01/08/2024)
01/12/2024	77	WAIVER OF SERVICE Returned Executed filed by Charlie Thorpe, Janene Thorpe, Christopher Thorpe(an individual) as to Kandace N Konecny Waiver sent on 12/5/2023, answer due 2/5/2024. (Heideman, Justin) (Entered: 01/12/2024)
01/12/2024	78	WAIVER OF SERVICE Returned Executed filed by Charlie Thorpe, Janene Thorpe, Christopher Thorpe(an individual) as to Jennifer L Nakai Waiver sent on 12/5/2023, answer due 2/5/2024. (Heideman, Justin) (Entered: 01/12/2024)
01/12/2024	79	WAIVER OF SERVICE Returned Executed filed by Charlie Thorpe, Janene Thorpe, Christopher Thorpe(an individual) as to Seth Waite Waiver sent on 12/5/2023, answer due 2/5/2024. (Heideman, Justin) (Entered: 01/12/2024)
01/12/2024	80	Stipulated MOTION for Extension of Time to File Initial Disclosures filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Attachments: # 1 Text of Proposed Order) Motions referred to Daphne A. Oberg.(Peat, Norman) (Entered: 01/12/2024)

01/16/2024	81	DOCKET TEXT ORDER granting 80 Motion for Extension of Time to File Initial Disclosures. Based on the parties' stipulation and good cause shown, the parties' deadline to file initial disclosures is extended to January 19, 2024. Signed by Magistrate Judge Daphne A. Oberg on 1/16/2024. No attached document. (gdr) (Entered: 01/16/2024)
01/17/2024	82	ANSWER to 55 Amended Complaint with Jury Demand filed by Kandace N Konecny, Jennifer L Nakai, Seth Waite. Attorney Michael L. Ford added to party Kandace N Konecny(pty:dft), Attorney Michael L. Ford added to party Jennifer L Nakai(pty:dft), Attorney Michael L. Ford added to party Seth Waite(pty:dft)(Ford, Michael) (Entered: 01/17/2024)
01/22/2024	83	STATUS REPORT *on Proof of Service on Defendants Jennifer L. Nakai, Kandace N. Konecny, and Seth Waite* by Charlie Thorpe, Christopher Thorpe(an individual), Janene Thorpe. (Peat, Norman) (Entered: 01/22/2024)
04/30/2024	84	REASSIGNMENT to Newly Appointed District Judge. Under DUCivR 83-2, this case is reassigned to District Judge Ann Marie McIff Allen. Judge David Barlow no longer assigned to the case. Orders of the prior judge are affirmed including the order of reference to Magistrate Judge Daphne A. Oberg under 28:636 (b)(1)(A) Case number will now read **2:23cr00242 AMA DAO.** Please make changes to document captions accordingly. (kpf) (Entered: 04/30/2024)
08/07/2024	85	Stipulated MOTION for Protective Order filed by Defendants American Fork City, American Fork City Police Department, C Slate Blackburn, Phillip W.S. Craig, Darren Falslev, Kandace N Konecny, Jennifer L Nakai, Seth Waite. (Attachments: # 1 Text of Proposed Order) Motions referred to Daphne A. Oberg.(Ford, Michael) (Entered: 08/07/2024)
08/08/2024	86	DOCKET TEXT ORDER denying without prejudice 85 Stipulated Motion for Protective Order. Pursuant to DUCivR 26-2, the District of Utah's Standard Protective Order, available at https://www.utd.uscourts.gov/usdc-forms, governs in every civil case unless the court enters a different protective order, and it need not be entered in the docket of a specific case. Accordingly, the motion is DENIED without prejudice. If the parties seek entry of an order which differs from the Standard Protective Order, they may file a new motion explaining those differences and the basis for the request. Signed by Magistrate Judge Daphne A. Oberg on 8/8/2024. No attached document. (gdr) (Entered: 08/08/2024)
08/21/2024	87	First MOTION for Extension of Time to Serve Plaintiff's Responses to Defendant's First Set of Interrogatories and Requests for Production of Documents to Plaintiffs filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Attachments: # 1 Exhibit, # 2 Text of Proposed Order) Motions referred to Daphne A. Oberg.(Peat, Norman) (Entered: 08/21/2024)
08/22/2024	88	DOCKET TEXT ORDER granting 87 Motion for Extension of Time. Plaintiffs' Responses to Defendants' First Set of Interrogatories and Requests for Production of Documents are due October 7, 2024. Signed by Magistrate Judge Daphne A. Oberg on 8/22/2024. No attached document. (gdr) (Entered: 08/22/2024)
11/19/2024	89	DOCKET TEXT ORDER: The parties are ordered to file a status report in compliance with paragraph 1 of the 74 Discovery Management Order by December 3, 2024. Signed by Magistrate Judge Daphne A. Oberg on 11/19/2024. No attached document.(gdr) (Entered: 11/19/2024)

12/03/2024	90	Stipulated MOTION for Amended Scheduling Order filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Attachments: # 1 Text of Proposed Order) Motions referred to Daphne A. Oberg.(Heideman, Justin) (Entered: 12/03/2024)
12/03/2024	91	STATUS REPORT *on Fact Discovery* by Charlie Thorpe, Christopher Thorpe(an individual), Janene Thorpe. (Peat, Norman) (Entered: 12/03/2024)
12/04/2024	92	DOCKET TEXT ORDER denying without prejudice 90 Motion for Amended Scheduling Order. The motion does not state a reason for the requested extensions. If the parties seek to amend the scheduling order, they must show good cause for their request. *See* Fed. R. Civ. P. 16(b)(4) ("A schedule may be modified only for good cause and with the judge's consent."). Additionally, to the extent the parties seek extension of the deadline to serve written discovery (which has already passed), the parties must also show excusable neglect. *See* Fed. R. Civ. P. 6(b)(1)(B). Finally, the parties' proposed six-month extensions would make it difficult to resolve this case within three years of filing. *See* Disc. Mgmt. Order paragraph 4, Doc. No. 37 ("Extensions which would prolong the case beyond three years from filing are unlikely to be granted.")); *see also* Civil Case Sched. and Disc. Plan, https://www.utd.uscourts.gov/civil-case-scheduling ("If the amendment would cause the case to be pending for more than three years from the date it was commenced, the motion may be denied...."). The parties may file a new motion which complies with the Federal Rules of Civil Procedure, however, the court is unlikely to grant lengthy extensions given the age of this case and the District of Utah's strong preference for resolving cases within three years of filing. Signed by Magistrate Judge Daphne A. Oberg on 12/4/2024. No attached document. (gdr) (Entered: 12/04/2024)
12/16/2024	93	Stipulated MOTION for Amended Scheduling Order filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Attachments: # 1 Text of Proposed Order) Motions referred to Daphne A. Oberg.(Heideman, Justin) (Entered: 12/16/2024)
12/17/2024	94	AMENDED SCHEDULING ORDER granting 93 Motion for Amended Scheduling Order. Expert Discovery due by 10/29/2025. Motions due by 11/21/2025. Signed by Magistrate Judge Daphne A. Oberg on 12/17/2024. (mh) (Entered: 12/17/2024)
12/17/2024	95	Modification of Docket: re 56 Answer to Amended Complaint, Crossclaim: Counsel confirmed that American Fork City Police Department not a cross claim defendant. American Fork City Police Department cross claim defendant role terminated. (mh) (Entered: 12/17/2024)
03/19/2025	96	DOCKET TEXT ORDER: The parties are ordered to file a status report in compliance with paragraph 1 of the 74 Discovery Management Order by April 2, 2025. Signed by Magistrate Judge Daphne A. Oberg on 3/19/2025. No attached document.(gdr) (Entered: 03/19/2025)
04/02/2025	97	STATUS REPORT *on Remaining Fact Discovery* by Charlie Thorpe, Christopher Thorpe(an individual), Janene Thorpe. (Peat, Norman) (Entered: 04/02/2025)
04/03/2025	98	DOCKET TEXT ORDER: The parties' 97 Status Report purports to request a six-month extension of fact discovery. If the parties seek to extend the case schedule, they must file a motion seeking that relief. Additionally, the parties are reminded that the court is disinclined to grant extensions that would prolong the case beyond three years, as explained in the previous 94

		Amended Scheduling Order and paragraph 4 of the 74 Discovery Management Order. Signed by Magistrate Judge Daphne A. Oberg on 4/3/2025. No attached document.(gdr) (Entered: 04/03/2025)
04/15/2025	99	Stipulated MOTION for Amended Scheduling Order ~~Extension of Time to Complete Discovery~~ filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Attachments: # 1 Text of Proposed Order) Motions referred to Daphne A. Oberg.(Peat, Norman) Modified to change the event type and add text on 4/16/2025 (kpf). (Entered: 04/15/2025)
04/15/2025	100	Stipulated MOTION for Extension of Time to Serve Plaintiff's Responses to Cedar Hills City's First Set of Written Discovery Requests to Plaintiffs filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Attachments: # 1 Text of Proposed Order) Motions referred to Daphne A. Oberg.(Peat, Norman) (Entered: 04/15/2025)
04/16/2025		Modification of Docket: Error: Incorrect event typed used. Correction: Event type corrected to Motion for Amended Scheduling Order and docket text entered re 99 MOTION for Extension of Time to Complete Discovery. No further action needed. (kpf) (Entered: 04/16/2025)
04/16/2025	101	ORDER granting 99 Motion for Amended Scheduling Order and granting 100 Motion for Extension of Time. (Discovery due by 4/13/2026., Motions due by 5/13/2026.) Signed by Magistrate Judge Daphne A. Oberg on 04/16/2025. (sg) (Entered: 04/16/2025)
06/10/2025		Deadlines/Hearings terminated. Scheduling conference set at 73 on 8/8/2025 before Judge David Barlow terminated because of case reassignment. (tcs) (Entered: 06/10/2025)
07/29/2025	102	NOTICE of Change of Address by Norman W. Peat, Jr (Peat, Norman) (Entered: 07/29/2025)
08/01/2025	103	MOTION to Withdraw as Counsel filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. Motions referred to Daphne A. Oberg.(Heideman, Justin) (Entered: 08/01/2025)
08/04/2025	104	ORDER granting 103 Motion to Withdraw as Counsel. Attorney Justin D. Heideman withdrawn from case for for Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. Signed by Magistrate Judge Daphne A. Oberg on 08/04/2025. (kpf) (Entered: 08/04/2025)
09/29/2025	105	DOCKET TEXT ORDER: The parties are ordered to file a status report in compliance with Paragraph 1 of the 74 Discovery Management Order within fourteen days. Signed by Magistrate Judge Daphne A. Oberg on 9/29/2025. No attached document. (cpb) (Entered: 09/29/2025)
10/13/2025	106	STATUS REPORT *Third Joint Status Report* by Charlie Thorpe, Christopher Thorpe(an individual), Janene Thorpe. (Peat, Norman) (Entered: 10/13/2025)
11/14/2025	107	DESIGNATION OF EXPERTS Dr. Sheryl Dobson Wainwright and Nick Deland filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe.(Peat, Norman) (Entered: 11/14/2025)
12/19/2025	108	MOTION for Amended Scheduling Order ~~MOTION for Extension of Time Plaintiffs' Expert Report Deadlines~~ and Memorandum in Support filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Attachments: # 1 Text of Proposed Order) Motions referred to Daphne A. Oberg.(Peat, Norman) Modified to change the event type and add text on 12/22/2025 (kpf). (Entered: 12/19/2025)

12/22/2025		Modification of Docket: re 108 MOTION for extension of Time. Error: The motion moves to amend motion expert discovery deadline. Correction: Motion relief changed to Amended Scheduling Order so that deadlines can be updated upon entry of order. No further action needed. (kpf) (Entered: 12/22/2025)
12/22/2025	109	THIRD AMENDED ORDER granting 108 Motion for Amended Scheduling Order. Expert Discovery due by 5/27/2026. Motions due by 6/29/2026. Signed by Magistrate Judge Daphne A. Oberg on 12/22/2025. (kpf) (Entered: 12/22/2025)
03/13/2026	110	MOTION for Leave to File Defendants' DUCivR 26-1(2) Expert Witness Designation and Added MOTION for Amended Scheduling Order on 3/16/2026 ~~Modify the Third Amended Scheduling Order~~ filed by Defendants American Fork City, American Fork City Police Department, C Slate Blackburn, Phillip W.S. Craig, Darren Falslev, Kandace N Konecny, Jennifer L Nakai, Seth Waite. Motions referred to Daphne A. Oberg.(Ford, Michael). Modified on 3/16/2026. To add additional event type. Pleading asking for an Amended Scheduling Order (kpf). (Entered: 03/13/2026)
03/13/2026	111	DESIGNATION OF EXPERTS Kristen Lesh, MS, CRC; Adam Sowers; Chandler Goodwin filed by Defendants American Fork City, American Fork City Police Department, C Slate Blackburn, Phillip W.S. Craig, Darren Falslev, Kandace N Konecny, Jennifer L Nakai, Seth Waite.(Ford, Michael) (Entered: 03/13/2026)
03/16/2026		Modification of Docket: re 110 MOTION for Leave to file. Error: The filing suggests two types of motions. Correction: Additional event type added, "Motion for Amended Scheduling Order". This will allow to set deadlines. No further action needed. (kpf) (Entered: 03/16/2026)
03/27/2026	112	NOTICE of Change of Address by Norman W. Peat, Jr (Peat, Norman) (Entered: 03/27/2026)
03/27/2026	113	MEMORANDUM in Opposition re 110 MOTION for Leave to File Defendants' DUCivR 26-1(2) Expert Witness Designation *and Modify the Third Amended Scheduling Order* MOTION for Amended Scheduling Order filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Peat, Norman) (Entered: 03/27/2026)
03/30/2026	114	DOCKET TEXT ORDER granting 110 Motion for Leave to File Expert Witness Designation and Modify the Third Amended Scheduling Order. Defendants seek leave to file their expert witness designations, after missing the deadline, in order to allow the court to conduct its conflict check in accordance with DUCivR 26-1(a)(2). Defendants filed their 111 expert designations along with this motion. And they only seek to amend the scheduling order as to their expert designation deadline to allow for these late designations. Plaintiffs do not oppose this limited request. (*See* Doc. No. 113 at 2). Accordingly, the motion is granted and the deadline for Defendants' expert designations is extended to 3/13/2026. All other deadlines remain unchanged. Signed by Magistrate Judge Daphne A. Oberg on 3/30/2026. No attached document. (cpb) (Entered: 03/30/2026)
05/07/2026	115	DOCKET TEXT ORDER: The parties are ordered to file a status report in compliance with Paragraph 2 of the 74 Discovery Management Order within fourteen days. Signed by Magistrate Judge Daphne A. Oberg on 5/7/2026. No attached document. (cpb) (Entered: 05/07/2026)
05/21/2026	116	STATUS REPORT *on Remaining Expert Discovery* by Charlie Thorpe, Christopher Thorpe(an individual), Janene Thorpe. (Peat, Norman) (Entered: 05/21/2026)
06/19/2026	117	Defendant's MOTION for Leave to File Excess Pages *for Leave to File Excess Memo ISO MIL to Exclude* filed by Defendants American Fork City, American Fork City Police Department, C Slate Blackburn, Phillip W.S. Craig, Darren Falslev, Kandace

		N Konecny, Jennifer L Nakai, Seth Waite. (Attachments: # 1 Text of Proposed Order) Motions referred to Daphne A. Oberg. (Ford, Michael) (Entered: 06/19/2026)
06/22/2026	118	Motions No Longer Referred: 117 Defendant's MOTION for Leave to File Excess Pages. District Judge Allen will handle the motion. (cpb) (Entered: 06/22/2026)
06/23/2026	119	DOCKET TEXT ORDER granting 117 Motion for Leave to File Excess Pages. Defendants may file a motion to exclude the opinions of Sheryl Wainwright not to exceed twenty pages, exclusive of the caption, signature block, certificate of service, table of contents, and attachments. Signed by District Judge Ann Marie McIff Allen on 8/23/2026. No attached document. (jag) (Entered: 06/23/2026)
06/23/2026	120	Defendant's MOTION in Limine *to Exclude Opinions of Sheryl Wainwright* filed by Defendants American Fork City, American Fork City Police Department, C Slate Blackburn, Phillip W.S. Craig, Darren Falslev, Kandace N Konecny, Jennifer L Nakai, Seth Waite. (Attachments: # 1 Exhibit Exhibit 1, # 2 Exhibit Exhibit 2, # 3 Exhibit Exhibit 3, # 4 Exhibit Exhibit 4, # 5 Exhibit Exhibi 5, # 6 Exhibit Exhibit 6)(Ford, Michael) (Entered: 06/23/2026)
06/24/2026	121	MOTION to Withdraw as Counsel and Memorandum in Support filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Attachments: # 1 Text of Proposed Order) Motions referred to Daphne A. Oberg.(Peat, Norman) (Entered: 06/24/2026)
06/29/2026	122	NOTICE of Appearance by Kimberly A. Smith on behalf of Cedar Hills City (Smith, Kimberly) (Entered: 06/29/2026)
06/29/2026	123	MOTION for Partial Summary Judgment filed by Cross Claimant Cedar Hills City, Defendant Cedar Hills City. (Attachments: # 1 Exhibit A - Second Amended Complaint, # 2 Exhibit B - Declaration of Chandler Goodwin, # 3 Exhibit C - Public Safety Service Agreement, # 4 Exhibit D - Cedar Hills' Responses to Plaintiffs' First Set of Discovery Requests to Cedar Hills City, # 5 Exhibit E - Plaintiffs' Responses to Defendant's First Set of Interrogatories and Requests for Production of Documents to Plaintiffs, # 6 Exhibit F - Deposition Excerpts of Christopher Thorpe Sr., # 7 Exhibit G - Deposition Excerpts of Janene Thorpe, # 8 Exhibit H - American Fork PD Policy 207, # 9 Exhibit I - Training History Reports) Attorney Kimberly A. Smith added to party Cedar Hills City(pty:dft)(Smith, Kimberly) (Entered: 06/29/2026)
06/29/2026	124	MOTION for Summary Judgment *on Cedar Hills City's First Crossclaims Against American Fork City* filed by Cross Claimant Cedar Hills City, Defendant Cedar Hills City. (Attachments: # 1 Exhibit A - Public Safety Service Agreement, # 2 Exhibit B - Declaration of Chandler Goodwin, # 3 Exhibit C - Cedar Hills Legal Fees Payment History)(Smith, Kimberly) (Entered: 06/29/2026)
06/29/2026	125	MOTION in Limine *to Exclude Opinions of Nicholas Y. DeLand* filed by Cross Claimant Cedar Hills City, Defendant Cedar Hills City. (Attachments: # 1 Exhibit A - Thorpes' Expert Designations, # 2 Exhibit B - Investigative Report)(Smith, Kimberly) (Entered: 06/29/2026)
07/08/2026	126	MEMORANDUM in Opposition re 121 MOTION to Withdraw as Counsel and Memorandum in Support filed by Defendant Cedar Hills City. (Bosserman, Hyrum) (Entered: 07/08/2026)
07/09/2026	127	ORDER granting 121 Motion to Withdraw as Counsel. Attorney Norman W. Peat, Jr withdrawn from case for Janene Thorpe, Christopher Thorpe, Sr., Christopher Thorpe, Jr., and Charlie Thorpe. Within twenty-one (21) days of the entry of this order, Janene Thorpe, Christopher Thorpe, Sr., Christopher

		Thorpe, Jr., and Charlie Thorpe shall file notices of pro se appearance, or new counsel shall file a notice of appearance on their behalf. This action, including all discovery-related deadlines and briefing deadlines on pending motions, is STAYED until twenty-one (21) days after entry of this order. After the stay is lifted, the court will set new briefing deadlines. Signed by Magistrate Judge Daphne A. Oberg on 07/09/2026. (kpf) (Entered: 07/09/2026)
07/30/2026	128	NOTICE of Appearance by Justin D. Heideman on behalf of Charlie Thorpe, Christopher Thorpe(an individual), Janene Thorpe (Heideman, Justin) (Entered: 07/30/2026)
08/06/2026	129	DOCKET TEXT ORDER SETTING BRIEFING DEADLINES: The stay of the case has expired. The court resets the following deadlines: 1. Plaintiffs' deadline to respond to the motions in limine to exclude opinions of Sheryl Wainwright and Nicholas Y. Deland (Doc. Nos. 120 & 125) is August 20, 2026. 2. Plaintiffs' deadline to respond to the motions for summary judgment (Doc. Nos. 123 & 124) is September 3, 2026. 3. The deadline to file dispositive motions is September 3, 2026. Discovery deadlines are not reset as they had expired when the motion to withdraw as counsel 121 was filed. Signed by Magistrate Judge Daphne A. Oberg on 8/6/2026. No attached document (med) (Entered: 08/06/2026)
08/20/2026	130	RESPONSE to Motion re 120 Defendant's MOTION in Limine *to Exclude Opinions of Sheryl Wainwright* filed by Plaintiff Christopher Thorpe. (Heideman, Justin) (Entered: 08/20/2026)
08/20/2026	131	Memorandum in Opposition ~~REPLY to Response to Motion~~ re 125 MOTION in Limine *to Exclude Opinions of Nicholas Y. DeLand* filed by Plaintiff Christopher Thorpe. (Heideman, Justin) Modified to change event type and add text on 8/21/2026 (kpf). (Entered: 08/20/2026)
08/20/2026	132	Plaintiff's MOTION for Discovery and Memorandum in Support filed by Plaintiff Christopher Thorpe. Motions referred to Daphne A. Oberg.(Heideman, Justin) (Entered: 08/20/2026)
08/21/2026		Modification of Docket: re 131 Reply to Response to Motion. Error: Counsel selected the incorrect event type. Correction: Text stricken, and changed event type to "Memorandum in Opposition". No further action is needed. (kpf) (Entered: 08/21/2026)
08/21/2026	133	NOTICE of Errata by Christopher Thorpe(an individual) re 130 Response to Motion *In Limine to Exclude Opinions of Sheryl Wainwright* (Heideman, Justin) (Entered: 08/21/2026)
08/21/2026	134	DOCKET TEXT ORDER setting briefing deadlines re 132 Plaintiff's Motion for Discovery: 1) By August 24, 2026, Plaintiff shall file a supplemental brief specifying which deadlines she seeks to extend other than fact discovery.

		2) Any response to the motion is due August 27, 2026. No reply is permitted unless ordered. Signed by Magistrate Judge Daphne A. Oberg on 8/21/2026. No attached document. (cs1) (Entered: 08/21/2026)
08/26/2026	135	DOCKET TEXT ORDER denying without prejudice 132 Plaintiffs' Motion for Discovery. Plaintiffs seek to reopen discovery and extend subsequent deadlines, but they did not specify the deadlines they seek to extend even after being ordered to do so (see Doc. No. 134). Because the scope of the relief Plaintiffs seek is unclear, their motion is denied without prejudice. Signed by Magistrate Judge Daphne A. Oberg on 08/26/2026. No attached document. (cs1) (Entered: 08/26/2026)
08/26/2026	136	NOTICE of Appearance by Justin D. Heideman on behalf of Janene Thorpe (Heideman, Justin) (Entered: 08/26/2026)
08/27/2026	137	NOTICE OF DEFICIENCY re 136 Notice of Appearance. Error: The Document was filed under the wrong attorney's name. The document itself states the attorney appearing is Corwin D. Bennett, but it was docketed as an appearance by Justin D. Heideman (who is already counsel on the case). As a result, Mr. Bennett is not listed as counsel on the docket. Also, the filer did not select all parties that Mr. Bennett is representing. The document itself states he is appearing for all plaintiffs, but it was docketed as an appearance only on behalf on one of them (Janene Thorpe). The clerk requests the filer of the original document to refile the pleading. The new pleading will receive a new document number on the docket. (kpf) (Entered: 08/27/2026)
08/27/2026	138	MOTION for Discovery *Motion to Reopen Discovery* filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. Motions referred to Daphne A. Oberg.(Heideman, Justin) (Entered: 08/27/2026)
08/27/2026	139	NOTICE of Appearance by Justin D. Heideman on behalf of Charlie Thorpe, Christopher Thorpe(an individual), Janene Thorpe (Heideman, Justin) (Entered: 08/27/2026)
08/28/2026	140	DOCKET TEXT ORDER setting briefing deadlines re 138 Plaintiffs' Motion to Reopen Discovery: 1) Plaintiffs' renewed motion again fails to specify "attendant deadlines" they seek to extend other than fact discovery and supplementation of expert disclosures. By September 2, 2026, Plaintiffs shall file a supplemental brief specifying all deadlines they seek to extend. 2) Any response to the motion is due September 9, 2026. No reply is permitted unless ordered. Signed by Magistrate Judge Daphne A. Oberg on 08/28/2026. No attached document. (cs1) (Entered: 08/28/2026)
09/02/2026	141	NOTICE of Appearance by Corwin David Bennett on behalf of Charlie Thorpe, Christopher Thorpe(an individual), Janene Thorpe (Bennett, Corwin) (Entered: 09/02/2026)
09/02/2026	142	Response to order no. 140 ~~for Amended Scheduling Order Discovery~~ ~~*Supplemental Brief Filed In Support of Plaintiffs Motion to Reopen Discovery*~~ filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Attachments: # 1 Exhibit A- Proposed Second Amended Scheduling Order) Motions referred to Daphne A. Oberg.(Bennett, Corwin) Modified to change event type and add text on 9/8/2026 (kpf). Modified to change event to a reply brief per chambers on 9/10/2026 (kpf). (Entered: 09/02/2026)

09/03/2026	143	Defendant's REPLY to Response to Motion re 120 Defendant's MOTION in Limine *to Exclude Opinions of Sheryl Wainwright* filed by Defendant American Fork City. (Ford, Michael) (Entered: 09/03/2026)
09/03/2026	144	REPLY to Response to Motion re 125 MOTION in Limine *to Exclude Opinions of Nicholas Y. DeLand* filed by Defendant Cedar Hills City. (Bosserman, Hyrum) (Entered: 09/03/2026)
09/03/2026	145	Defendant's REPLY to Response to Motion re 120 Defendant's MOTION in Limine *to Exclude Opinions of Sheryl Wainwright* filed by Defendant American Fork City. (Ford, Michael) (Entered: 09/03/2026)
09/03/2026	146	MOTION for Extension of Time to File Response/Reply as to 123 ~~*MOTION FOR EXTENSION OF TIME TO FILE MEMORANDUM IN OPPOSITION TO DEFENDANTS*~~ *MOTION FOR PARTIAL SUMMARY JUDGMENT* filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. Motions referred to Daphne A. Oberg.(Bennett, Corwin) Modified to link to motion on 9/4/2026 (kpf). (Entered: 09/03/2026)
09/03/2026	147	MOTION for Extension of Time to File Response/Reply as to 124 ~~MOTION FOR EXTENSION OF TIME TO FILE MEMORANDUM IN OPPOSITION TO DEFENDANTS~~ MOTION FOR SUMMARY JUDGMENT filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. Motions referred to Daphne A. Oberg.(Bennett, Corwin) Modified to link to motion on 9/4/2026 (kpf). (Entered: 09/03/2026)
09/03/2026	148	Amended MOTION for Extension of Time to File Response/Reply ~~MOTION for Extension of Time to File Response/Reply~~ ~~*MOTION FOR EXTENSION OF TIME TO FILE MEMORANDUM IN OPPOSITION TO*~~ *as to* ~~*146*~~ *123 DEFENDANTS MOTION FOR PARTIAL SUMMARY JUDGMENT* filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Attachments: # 1 Proposed Order) Motions referred to Daphne A. Oberg.(Bennett, Corwin) Modified to strike text and link to correct motion on 9/4/2026 (kpf). (Entered: 09/03/2026)
09/03/2026	149	Amended MOTION for Extension of Time to File Response/Reply as to ~~147 MOTION for Extension of Time to File Response/Reply~~ ~~*MOTION FOR EXTENSION OF TIME TO FILE MEMORANDUM IN OPPOSITION TO DEFENDANTS*~~ *as to 124 MOTION FOR SUMMARY JUDGMENT* filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Attachments: # 1 Exhibit Proposed Order) Motions referred to Daphne A. Oberg.(Bennett, Corwin) Modified to link to motion and strike text on 9/4/2026 (Entered: 09/03/2026)
09/04/2026	150	DOCKET TEXT ORDER granting 148 Motion for Extension of Time to File Response/Reply; granting 149 Motion for Extension of Time to File Response/Reply. The deadline to file a response to the corresponding motions is extended to September 11, 2026. Signed by Magistrate Judge Daphne A. Oberg on 09/04/2026. No attached document. (cs1) (Entered: 09/04/2026)
09/04/2026	151	DOCKET TEXT ORDER finding as moot 146 Motion for Extension of Time to File Response/Reply; finding as moot 147 Motion for Extension of Time to File Response/Reply. The court granted the requested extensions in its order at Doc. No. 150. Signed by Magistrate Judge Daphne A. Oberg on 09/04/2026. No attached document. (cs1) (Entered: 09/04/2026)
09/08/2026	152	Modification of Docket: re 142 MOTION for Discovery. Error: The document should have been filed using the event "Motion for Amended Scheduling Order". Correction: Event type corrected and docket text modified to correct filing. No further action is needed. (kpf) (Entered: 09/08/2026)

09/09/2026	153	Defendant's MEMORANDUM in Opposition re 138 MOTION for Discovery *Motion to Reopen Discovery* filed by Defendants American Fork City, American Fork City Police Department, C Slate Blackburn, Phillip W.S. Craig, Darren Falslev, Kandace N Konecny, Jennifer L Nakai, Seth Waite. (Ford, Michael) (Entered: 09/09/2026)
09/09/2026	154	Defendant's RESPONSE to Motion re 138 MOTION for Discovery *Motion to Reopen Discovery* filed by Defendant Cedar Hills City, Cross Claimant Cedar Hills City. (Bosserman, Hyrum) (Entered: 09/09/2026)
09/11/2026	155	MOTION for Extension of Time MOTION FOR SECOND EXTENSION OF TIME TO FILE MEMORANDUM IN OPPOSITION TO DEFENDANTS MOTION FOR PARTIAL SUMMARY JUDGMENT filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. Motions referred to Daphne A. Oberg.(Bennett, Corwin) (Entered: 09/11/2026)
09/11/2026	156	MOTION for Extension of Time MOTION FOR SECOND EXTENSION OF TIME TO FILE MEMORANDUM IN OPPOSITION TO DEFENDANTS MOTION FOR SUMMARY JUDGMENT filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. Motions referred to Daphne A. Oberg.(Bennett, Corwin) (Entered: 09/11/2026)
09/14/2026	157	DOCKET TEXT ORDER granting 155 Second Motion for Extension of Time to File Response/Reply; granting 156 Second Motion for Extension of Time to File Response/Reply. The deadline to file a response to the corresponding motions is extended to September 15, 2026. Signed by Magistrate Judge Daphne A. Oberg on 09/14/2026. No attached document. (cs1) (Entered: 09/14/2026)
09/15/2026	158	Plaintiff's MEMORANDUM in Opposition re 123 MOTION for Partial Summary Judgment filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Attachments: # 1 Exhibit 1 to Oppn to MPSJ - Transcript of Deposition of Christopher Thorpe, # 2 Exhibit 2 to Oppn to MPSJ - Transcript of Deposition of Janene Thorpe, # 3 Exhibit Expert Report of Nicholas Y. DeLand)(Bennett, Corwin) (Entered: 09/15/2026)
09/16/2026	159	Plaintiff's REPLY to Response to Motion re 138 MOTION for Discovery *Motion to Reopen Discovery (Reply to Defendant Cedar Hills' Opposition)* filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Bennett, Corwin) (Entered: 09/16/2026)
09/16/2026	160	Plaintiff's REPLY to Response to Motion re 138 MOTION for Discovery *Motion to Reopen Discovery (Reply to American Fork Defendants' Opposition)* filed by Plaintiffs Charlie Thorpe, Christopher Thorpe, Christopher Thorpe, Janene Thorpe. (Bennett, Corwin) (Entered: 09/16/2026)
09/24/2026	161	Stipulated MOTION for Extension of Time to File Response/Reply for Cedar Hills City to File its Reply Memorandum in Support of 123 Motion for Summary Judgment filed by Cross Claimant Cedar Hills City, Defendant Cedar Hills City. (Attachments: # 1 Text of Proposed Order) Motions referred to Daphne A. Oberg.(Smith, Kimberly) Modified to change event type, add text and link to motion on 9/25/2026 (kpf). (Entered: 09/24/2026)
09/25/2026	162	Modification of Docket: re 161 MOTION for Extension of Time: Error: The document should of been filed using the event Motion for Extension of Time to File Response/Reply and should of been linked to the applicable motion. Correction: Event type corrected, link created, excess text removed, docket text modified to correct filing. No further action is needed.(kpf) (Entered: 09/25/2026)

09/25/2026	163	Motions No Longer Referred: 161 MOTION for Extension of Time to File Response/Reply. The district judge will address the motion. (cs1) (Entered: 09/25/2026)
09/28/2026	164	DOCKET TEXT ORDER granting 161 Motion for Extension of Time to File Response/Reply. Defendant Cedar Hills' Reply shall be due October 13, 2026. Signed by District Judge Ann Marie McIff Allen on 9/28/2026. No attached document. (jag) (Entered: 09/28/2026)
10/09/2026	165	MOTION for Leave to File Excess Pages */Overlength Reply Memorandum in Support of Motion for Partial Summary Judgment* filed by Defendant Cedar Hills City, Cross Claimant Cedar Hills City. Motions referred to Daphne A. Oberg.(Smith, Kimberly) (Entered: 10/09/2026)
10/13/2026	166	DOCKET TEXT ORDER granting 165 Cedar Hills City's Motion for Leave to File Excess Pages. Cedar Hills may file a reply in support of its motion for summary judgment of up to 33 pages. Signed by Magistrate Judge Daphne A. Oberg on 10/13/2026. No attached document. (med) (Entered: 10/13/2026)
10/13/2026	167	REPLY to Response to Motion re 123 ~~124~~ MOTION for Summary Judgment *on Cedar Hills City's First Crossclaims Against American Fork City* filed by Defendant Cedar Hills City, Cross Claimant Cedar Hills City. (Attachments: # 1 Exhibit A - Civil Stalking Injunction)(Smith, Kimberly) Modified on 10/14/2026: Per counsel the entry was linked to the wrong motion. Docketing Text added to correct linkage. (kpf). (Entered: 10/13/2026)
10/14/2026	168	Modification of Docket: re 167 Reply Memorandum/Reply to Response to Motion. Error: Per counsel, filer linked the entry to the wrong motion. Correction: Link and entry text corrected to refer to underlying motion 123 . No further action needed. (kpf) (Entered: 10/14/2026)
10/26/2026	169	REQUEST to Submit for Decision re 120 Defendant's MOTION in Limine *to Exclude Opinions of Sheryl Wainwright* filed by Cross Claimant Cedar Hills City, Defendant Cedar Hills City. (Bosserman, Hyrum) (Entered: 10/26/2026)
10/26/2026	170	REQUEST to Submit for Decision re 123 MOTION for Partial Summary Judgment filed by Cross Claimant Cedar Hills City, Defendant Cedar Hills City. (Bosserman, Hyrum) (Entered: 10/26/2026)
10/26/2026	171	REQUEST to Submit for Decision re 125 MOTION in Limine *to Exclude Opinions of Nicholas Y. DeLand* filed by Defendant Cedar Hills City, Cross Claimant Cedar Hills City. (Bosserman, Hyrum) (Entered: 10/26/2026)
10/26/2026	172	REQUEST to Submit for Decision re 124 MOTION for Summary Judgment *on Cedar Hills City's First Crossclaims Against American Fork City* filed by Defendant Cedar Hills City, Cross Claimant Cedar Hills City. (Bosserman, Hyrum) (Entered: 10/26/2026)